

24STCV21659 24STCV21659

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-01

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Case Number: 24STCV21659 Hearing Date: July 1, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

24STCV21659

LUCINA

VINDIOLA PACHECO vs THE NEW CONCEPT OF CLEAN, et al.

July

1, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF LIPELES LAW GROUP, APC TO BE RELIEVED AS COUNSEL-CIVIL.

RULING:

The Court grants the
Motion.

The Court will complete,
sign and file the proposed Form Order received-stamped on June 5, 2026.

ANALYSIS

By the Motion, filed June
5, 2026, counsel moves to be relieved as attorney of record for Plaintiff, by
declaring, in the form Declaration, at paragraph 2, that counsel lost contact
after Plaintiff moved to Mexico without any plans to return.

Here, the form notice,
declaration, proposed order, and proof of service sufficiently comply with the
requirements for a motion to be relieved as counsel. (See Cal. Rules of Court, rule 3.1362.)

Further, moving counsel's
declaration shows cognizable grounds for withdrawal:

The client by conduct renders it
unreasonably difficult for the member to carry out the employment
effectively (e.g., noncooperation or noncommunication). (Rules Prof.
Conduct, rule 1.16(b)(4). Cf.
Falco, supra, 188 Cal App.3d at p. 1020 ["We find no abuse of
discretion in the trial court's implicit finding rejecting the contention
that respondents' lack of cooperation justified appellants'
withdrawal."].)

Finally, no opposing
document is filed in order to show any prejudice caused by attorney withdrawal.
(See Rules Prof. Conduct, rule 1.16(d); Vann v. Shilleh (1975) 54
Cal.App.3d 192, 197.)

Therefore, the Court
grants the Motion and will sign the proposed Order counsel submitted.

Moving attorney to give
notice.